# SELECTION, EVALUATION AND APPROVAL OF SUPPLIERS

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| DOCUMENT HISTORY | | | |
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| VERSION | CAUSES OF MODIFICATION | EFFECTIVE DATE | REPLACES (Code, Revision) |
| 01 | Initial edition | 02/14/2024 | N/A |
| 02 | Critical and non-critical suppliers are identified, the evaluation process is updated depending on the type of supplier, Annex 1 is modified to comply with SPIKA requirements, Spika departments are changed, and the process is digitalized. | 02/06/2025 | PNT-012.01 |

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## 1. Aim

The objective of this procedure is the system for selecting, evaluating and approving Spika Tech suppliers, hereinafter SPIKA, establishing the basic requirements for approving suppliers that lead to the affirmation that:

- Approved suppliers are available who can guarantee the supply of products or the performance of activities that are to be subcontracted.
- Suppliers have the necessary requirements to provide a material/service with the required quality, in accordance with internal specifications and regulatory and customer requirements.

## 2. Scope

The scope of this procedure applies to the selection, evaluation and approval of suppliers, as follows:

| Supplier | Material |
|---|---|
| Manufacturers | Hardware components, external devices |
| Software providers | Cloud platforms, embedded software |
| Service providers | Validation, qualification, software testing, quality control, consulting |
| Logistics providers | Transportation, distribution or warehouse management services |

## 3. Responsibilities and Departments Affected

The Sales Department, in coordination with Management or its delegate, is responsible for contacting suppliers to request information on the evaluation of this procedure, as well as informing the Technical Manager of the need to evaluate new suppliers.

The Technical Manager will approve or reject the evaluation of the suppliers and will safeguard all the information and documentation generated.

The Research and Development Department will collaborate in the search and supervision of authorized suppliers.

The affected departments are those indicated in the following table:

| Department | Apply | |
|---|---|---|
| | Yeah | No |
| Address | ☒ | ☐ |
| Environment | ☒ | ☐ |
| Quality Assurance | ☒ | ☐ |
| Systems and Cybersecurity | ☒ | ☐ |
| Research and Development | ☒ | ☐ |
| Marketing and Sales | ☒ | ☐ |
| Management | ☒ | ☐ |

## 4. Definitions and Acronyms

- Software : A set of instructions, programs, or applications designed to perform specific tasks within a computer system.
- Software vendor : An external entity responsible for providing software or software components that may be integrated, used, or required in the development, validation, or maintenance of products or services.

- Cloud computing : A technology service delivery model that enables remote access, via networks, to shared and configurable computing resources (such as storage, servers, databases, applications, and services).
- Cloud provider : An organization that offers cloud-based services (such as AWS, Microsoft Azure, Google Cloud).

# 5. Procedure

## 5.1. Introduction

Having approved suppliers is essential to meet customer, regulatory, and organizational requirements.

Furthermore, having approved suppliers prevents quality issues associated with the products or services supplied, as well as ensuring the search for alternative suppliers to ensure supply.

## 5.2. Selection

Anyone within the organization can propose new suppliers by completing a structured form. This form collects all the information necessary to evaluate the supplier's suitability, including the materials or services offered, associated risks, and selection criteria.

Suppliers with a direct supply chain and those with satisfactory prior experience will be prioritized. The Quality Department will be responsible for reviewing and validating the information received before proceeding with the formal supplier evaluation.

## 5.3. Assessment

Suppliers may be classified as critical or non-critical depending on their impact on:

1. The quality management system : suppliers whose products, materials or services are essential to meet regulatory and quality requirements.
2. Processes and activities : suppliers that directly affect the manufacturing or servicing of the final product

3. **The end product** : Suppliers that provide key components or services that impact the safety, efficacy, or regulatory compliance of the product.

Criteria for determining critical suppliers:

- **Product or material manufacturers:** Those who supply raw materials, key components, or packaging materials that have a direct impact on product compliance with regulatory requirements.
- **Service providers:** external consultants or services that affect validated or critical processes.
- **Distributors:** If they act as intermediaries for products that have a direct impact on final product requirements or regulatory compliance.

Evaluation system according to the type and impact of the supplier

Critical Suppliers:

A more thorough assessment is required due to the direct impact on product and process quality. The documentation to be collected includes:

- **Quality Agreement** (See Annex 1): Defines the responsibilities and expectations between the parties.
- **Quality certifications:** ISO, GMP, GDP or other applicable standards.
- **Technical specifications or product sheets** (if applicable): Guarantees that the product meets the established requirements.
- **Declarations or additional documentation** : Declarations of conformity, audit reports, quality tests, or other documents specific to the product or service.
- **Audits (if applicable):** Conduct on-site or remote audits to verify compliance with quality standards and established agreements.

Non-critical suppliers:

For suppliers with a lower impact, a proportional assessment will be applied, focusing on basic documentation:

- **Quality Agreement** (See Annex 1).
- **Quality certifications available.**

- Minimum additional documentation to validate that the products or services meet the established basic requirements.

* *If the specified evaluation process is not possible, an exception will be made by gathering all available information about the vendor and conducting an assessment to determine suitability. This may apply, for example, to software vendors or other specific cases.*

## 5.4. Supplier approval

The Technical Manager or the person designated by them is responsible for issuing a decision on the approval or rejection of an evaluated supplier. They will issue their decision after reviewing the documentation received from the supplier and preparing the form in Annex 2 , signing and dating the approval or rejection. The supplier list will then be updated; a sample/template is included in Annex 3 .

A quality agreement template is proposed in Annex 1 , although agreements submitted by the supplier may be signed or modifications made to the one included in this procedure.

All generated documentation will be filed and safeguarded by the Responsible Technician.

## 5.5. Re-evaluation of suppliers

Suppliers may be re-evaluated if:

- After inactivity of at least 5 years and they are required to apply again
- According to the history of complaints or incidents arising from them, to be concluded and reviewed in the Quality Management System Review Report by Management.

## 5.6. Audits

In cases where the critical nature of the service provided and after evaluating the available documentation, an audit will be conducted at the supplier's facilities. The provisions of PNT-013, Internal and External Audits, will be followed.

## 5.7. Documentation file

Documentation of supplier evaluation and approval (completed forms, submitted documentation, audit reports, follow-up reports, annual audit plan, etc.) will be kept in the files of the QA/RA department, as established in procedure PNT-001 Document Management and Archiving .

## 6. Distribution of the Procedure

Staff members in the departments listed in Section 3 (Responsibilities and Affected Departments) must be provided with a copy of this procedure. In addition, controlled copy No. 1 will be submitted to the Archives for paper archiving.

Controlled copies to be issued:

| Controlled Copy No. | Departments |
|---|---|
| 1 | Archive |

## 7. Annexes

| NO. / REV. | QUALIFICATION |
|---|---|
| 1/01 | Quality agreement template |
| 2/01 | Supplier approval/rejection record |
| 3/01 | List of suppliers |

## 8. Related documentation

| Code | QUALIFICATION |
|---|---|
| N/A | Regulation (EU) 2017/745 of the European Parliament and of the Council on medical devices, amending Directive 2001/83/EC, Regulation (EC) No 178/2002 |
| MQ-01 | Quality Manual |
| PNT-001 | Document and archive management |
| PNT-013 | Audits: internal and external |

## 9. Training

This version requires that the affected departments indicated in section 3 receive the training indicated below:

| Mark with an X | Type of training |
|---|---|
| ☒ | **Theoretical** (reading and understanding of the procedure) |
| ☐ | **Theoretical – Practical** (If you select this option, contact the Responsible Technician) |

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## Quality Agreement Template

SPIKA TECH QUALITY AGREEMENT

This quality agreement as of ( INDICATE DATE ) is between the following parties:

Spika Tech, hereinafter SPIKA, as a company registered in INIDICAR DIRECCION , Spain with CIF: INDICAR , represented by INIDICAR ADMINISTRADOR, acting as **Buyer** in this agreement.

and

( INDICATE COMPANY NAME ), as a company registered in ( INDICATE LOCATION; Exact address) with CIF ( INDICATE No. ) , represented by ( INDICATE REPRESENTATIVE ), acting as **Supplier** in this agreement.

- The buyer is a company dedicated to the manufacture of medical devices.
- The supplier is a company dedicated to ( INDICATE ACTIVITY ).
- The buyer intends to purchase the products from the supplier identified in **Annex 1** of this agreement.
- Both parties decide to draft this agreement to define the roles and responsibilities of each in relation to the quality of the products supplied.

DEFINITIONS:

- Product: This is understood as the good supplied by the supplier and that the buyer intends to acquire, understood as physical products or goods or services.

SCOPE:

1. This quality agreement covers all aspects of quality related to the manufacturing, packaging, distribution, and storage of products, and establishes and defines the obligations and responsibilities of both parties in relation to the quality standard required for the products to be supplied by the supplier.
2. This agreement is not intended to define legal or commercial relationships .

Article 1: Certificate of Analysis or Certificate of Conformity

1. The buyer is required to have a certificate of analysis for the products to be purchased.
2. The certificate of analysis must be provided with each delivery of material, if required by the type of product to be supplied.
3. The certificate of analysis must contain at least the following information:
    a. Name and exact address of the supplier. If the supplier and manufacturer are different, provide the manufacturer's exact address.
    b. Product name
    c. Product batch number
    d. Reference to specifications
    e. Tests carried out in accordance with applicable regulations
    f. Release date and signature of qualified personnel
    g. In Spanish or English.

Article 2: Exchange Control

1. The supplier must have a change control system in place.
2. The supplier must inform the buyer of any changes made to the product, especially those that impact the quality of the supplied product, so that the buyer can analyze their impact .
3. The implementation of major changes must have the buyer's approval before being executed.
4. The supplier will provide the material in compliance with applicable standards and regulations and will provide the necessary documentation of those changes to meet the requirements of health regulatory agencies, if applicable.
5. The supplier shall notify and inform the buyer within a reasonable period of time.

## Article 3: Audits

1. The supplier is open to on-site audits and/or postal/documentary/remote audits. The supplier must allow access to the buyer's premises, as well as the required documentation, without interfering with ongoing operations .
2. The results of the audits and observations will be submitted by the buyer in writing. The supplier will ensure follow-up and implementation of any required corrective measures.
3. The frequency of audits will depend on the results of the audits and the quality of the supplier. If there are no critical nonconformities regarding product quality, the frequency will not be more than every three years.

## Article 4. Retention samples

1. The supplier will keep sufficient retention samples to repeat analysis at least twice against specifications.

## Article 5: Documentation

1. The supplier will store the production documentation and all original documentation related to the product, which will be protected and with controlled access.
2. The original documentation is accessible in the event that the buyer attends the facilities for an audit.

## Article 6. Claims/Complaints

1. The supplier will respond to complaints submitted by the buyer within a period of no more than 20 business days. In the case of serious complaints, the maximum response time will be 5 days, in order to deliver a written preliminary report and a final report within 10 days.
2. In the event of non-compliance with the indicated deadlines, the supplier may provide interim reports to the buyer.

3. The supplier will inform the buyer if it receives serious complaints with a high impact on the products supplied to the buyer.

## Article 7. Withdrawal

1. In the event of a recall by the supplier, the buyer will be immediately informed of the quality defects.
2. In the event of a recall, the buyer and supplier will agree on and decide on roles and responsibilities, as well as the coordination of the investigation.
3. The buyer is the one who will make the final decision on the finished product based on scientific criteria and risk management.

## Article 8: Raw materials

1. The supplier is responsible for purchasing, storing, analyzing, and disposing of raw materials, as well as ensuring that each one meets current requirements.

## Article 9. Deviations

1. In the event of serious quality-related incidents detected after shipment to the buyer, the supplier must inform the buyer as soon as possible.

## Article 10. Packaging and labeling.

1. Appearance: The labeling of the product supplied by the supplier must be identifiable, located in a visible location and in adequate dimensions for human reading.
2. Contents: The product must be labeled with the product description, product name, batch number , supplier name, and quantity.

## Article 11. Regulatory documentation

1. The supplier will be responsible for preparing the regulatory documentation required by the buyer and keeping it updated according to requirements.

## Article 12. Product release

1. The supplier will not deliver the product to the buyer until it has been released by the supplier. Quarantined shipments may be accepted with prior authorization from the buyer.

## Article 13. Specifications

1. The supplier will release the product according to the specifications and tests agreed upon by both parties, buyer and supplier.

## Article 14. Confidentiality

1. The Supplier and the Buyer understand that any information of a confidential nature provided by either party must be treated in strict confidence.

With all this, the parties agree to the provisions set forth herein on two original copies as of the date indicated by the undersigned:

Place, date Place, date

_____ _____

SpikaTech ( INDICATE COMPANY NAME )

Represented by ( INDICATE Represented by ( INDICATE REPRESENTATIVE ) REPRESENTATIVE )

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## Supplier approval/rejection record.

| SUPPLIER APPROVAL REPORT | | |
|---|---|---|
| MADE BY: | Signature and date | |
| Supplier name | | |
| Supplier address | | |
| Comments | | |
| Bottom line | Approved☐ | Refused☐ |
| Comments: | | |

**ANNEX 3_VERSION _02**

## Registration of the list of approved suppliers.

| | A | B | C | D | E | F | G | H |
|---|---|---|---|---|---|---|---|---|
| 1 | Nº | Nombre del proveedor | Tipo de proveedor | Producto / servicio | Evaluación final | Fecha aprobación | Responsable | Observaciones |
| 2 | | | | | | | | |
| 3 | | | | | | | | |